

[doc. web n. 9981308]
Provision of December 21, 2023
Register of provisions
n. 612 of December 21, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Attorney
Guido Scorza, Member, and Cons. Fabio Mattei
Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018, containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the report of the Local Police of the Municipality of Ancona – Section of Commercial and Food Police – which reports on a control carried out on June 10, 2022, at the public establishment named "Macelleria Salumeria Halal," located in Ancona, Via Marconi 87, whose owner is Mr. Benhabiles Sid Ahmed;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. The report received and the initiation of the procedure.

By note dated June 30, 2022, the Local Police of the Municipality of Ancona transmitted the report of the control carried out on June 10, 2022, at the public establishment named "Macelleria Salumeria Halal" located in Ancona, Via Marconi 87, which confirmed the presence of a functioning video surveillance system and the absence of appropriate informational signs regarding the presence of cameras.

The Office, by note dated November 4, 2022 (prot. n. 60702), notified the initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code, in relation to the violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation.

Although informed of the possibility to submit defensive writings or documents regarding the sanctioning procedure against him, the data controller did not provide any documentation in this regard.

2. The legal framework of the processing carried out.

The use of video surveillance systems can result, depending on the positioning of the cameras and the quality of the images captured, in the processing of personal data. Such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, the principle of transparency, which presupposes that "data subjects must always be informed that they are about to enter a monitored area."

For this purpose, the data controller must affix appropriate informational signs according to the indications contained in point 3.1. of the provision on video surveillance - April 8, 2010 [1712680] (in this sense also the FAQs on video surveillance published on the Authority's website).

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, point 7) specify that "Regarding video surveillance, the most

important information must be indicated [by the controller] on the warning sign itself (first level), while additional mandatory details can be provided by other means (second level). The guidelines also provide that "Such information may be provided in combination with an icon to give, in a clearly visible, intelligible, and legibly clear manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information should be adapted to various locations." The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance before entering the monitored area (approximately at eye level) "to allow the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary."

The processing of personal data carried out by the company through the video surveillance system is therefore unlawful, as stated above, in relation to Articles 5, paragraph 1, letter a) and 13 of the Regulation.

3. The outcome of the investigation and the sanctioning procedure.

Based on the findings made, it emerged that the video surveillance system installed at the public establishment named "Macelleria Salumeria Halal" located in Ancona, Via Marconi 87, was active and functioning and that no sign bearing the information required by Article 13 of the Regulation had been affixed.

In this case, it is therefore proven that personal data processing was carried out through a video surveillance system, in the absence of the required information.

Such conduct is in contrast with what is established by Article 13 of the Regulation, according to which the data controller is required to provide the data subject with all the information regarding the essential characteristics of the processing.

4. Conclusions: declaration of unlawfulness of the

****Processing. Corrective measures pursuant to Article 58, par. 2, Regulation.****

The processing of personal data carried out by the sole proprietorship is therefore unlawful, as outlined above, in relation to Articles 5, par. 1, lett. a) (principle of transparency) and 13 (information) of the Regulation.

The violation established in the terms set out in the reasoning cannot be considered "minor," taking into account the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

****5. Injunction Order.****

The Authority, pursuant to Article 58, par. 2, lett. i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction as provided for by Article 83, par. 5, of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the company through the video surveillance system, the unlawfulness of which has been established, as outlined above, in relation to Articles 5, par. 1, lett. a) and 13 of the Regulation.

With reference to the elements listed in Article 83, par. 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be "effective, proportionate, and dissuasive in each individual case" (Article 83, par. 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- regarding the nature, severity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility related to the failure to fulfill the obligation to provide information to the data subjects;
- the absence of specific previous violations against the aforementioned sole proprietorship related to breaches of data protection regulations;
- the circumstance that the data controller did not cooperate with the Authority during the proceedings nor demonstrated compliance with the legal obligation.

It is also considered that the economic conditions of the offender, determined with reference to the financial statements for the year 2022, are relevant in this case, taking into account the

aforementioned principles of effectiveness, proportionality, and dissuasiveness that the Authority must adhere to in determining the amount of the sanction (Article 83, par. 1, of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to set the amount of the pecuniary sanction at €2,000.00 (two thousand) for the violation of Articles 5 and 13 of the Regulation.

In this context, also considering the type of violation established, it is deemed that, pursuant to Article 166, par. 7, of the Code and Article 16, par. 1, of the Authority's Regulation No. 1/2019, the publication of this measure on the Authority's website should proceed.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Authority, are met.

****ALL OF THE ABOVE CONSIDERED, THE AUTHORITY****

declares, pursuant to Articles 57, par. 1, lett. f) and 83 of the Regulation, the unlawfulness of the processing carried out by the sole proprietorship Benhabiles Sid Ahmed through the use of the video surveillance system installed at the commercial establishment named "Macelleria Salumeria Halal," located at Via Marconi 87 (VAT No. 02709160424) in the terms outlined in the reasoning, for the violation of Articles 5 and 13 of the Regulation;

****ORDERS****

the sole proprietorship to pay the sum of €2,000.00 (two thousand) as an administrative pecuniary sanction for the violations indicated in this measure;

****INSTRUCTS****

the same company to comply, pursuant to Article 58, par. 2, lett. d) of the Regulation, with the provisions of the Regulation regarding the placement, where it has not already done so, of suitable informational signs regarding the presence of cameras;

to pay the sum of €2,000.00 (two thousand), according to the methods indicated in the annex, within 30 days from the notification of this measure, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, par. 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the term referred to in Article 10, par. 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

****DISPOSES****

pursuant to Article 166, par. 7, of the Code and Article 16, par. 1, of the Authority's Regulation No. 1/2019, the publication of this measure on the Authority's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

It is also ordered that the initiatives undertaken to implement the provisions of this measure be communicated and that adequate documented feedback be provided.

pursuant to Article 157 of the Code, within 30 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for by Article 83, paragraph 5, letter e) of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, December 21, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei